

03:00 PM

25-CIV-02682 ABSOLUTE RESOLUTIONS INVESTMENTS LLC VS JAMES HALL

LINE 1

ABSOLUTE RESOLUTIONS INVESTMENTS LLC
JAMES QUINCEY HALL

BRENT DAVID PETERSON
MATTHEW C. SALMONSEN

CROSS-DEFENDANTS: ABSOLUTE RESOLUTIONS INVESTMENTS, LLC, ABSOLUTE RESOLUTIONS CORPORATION, GARY BEMIS AND BRENT PETERSON'S APPLICATION FOR ADMISSION PRO HAC VICE BY PATRICK D. NEWMAN

TENTATIVE RULING:

The court **GRANTS** defendants Absolute Resolutions Investments' unopposed applications to admit Stacie E. Barhorst, Michael S. Poncin and Patrick D. Newman *pro hac vice*.

California Rules of Court, Rule 9.40 governs applications to appear *pro hac vice* and provides in pertinent part:

(c) Application

(1) Application in superior court

A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period.

...

(d) Contents of application

The application must state:

- (1) The applicant's residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;
- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

The application must also demonstrate that the correct fee was paid to the State Bar.

The current applications satisfy all these requirements.

The court notes as a courtesy the requirement of Government Code section 70617 subdivision (e)(2) which provides that “on or before the anniversary of the date the application was granted, an annual renewal fee for each year that the attorney maintains pro hac vice status in the case in which the application was granted” must be paid. Failure to pay the fees can have consequences. (See e.g. *Golba v. Dick’s Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1255 [declining to award fees].)

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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LINE 2

ABSOLUTE RESOLUTIONS INVESTMENTS LLC
JAMES QUINCEY HALL

BRENT DAVID PETERSON
MATTHEW C. SALMONSEN

CROSS-DEFENDANTS: ABSOLUTE RESOLUTIONS INVESTMENTS, LLC, ABSOLUTE RESOLUTIONS CORPORATION,
GARY BEMIS AND BRENT PETERSON'S APPLICATION FOR ADMISSION PRO HAC VICE BY STACIE E. BARHORST

TENTATIVE RULING:

Please refer to the tentative ruling for Line 1, which is hereby incorporated by reference and serves as the tentative ruling for Line 2.
